

IN THE SENATE

SENATE BILL NO. 1392

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO MORTICIANS, FUNERAL DIRECTORS, AND EMBALMERS; AMENDING SECTION 54-1143, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING DEFINITIVE IDENTIFICATION AND TO MAKE A TECHNICAL CORRECTION; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 54-1143, Idaho Code, be, and the same is hereby amended to read as follows:

54-1143. RIGHT TO RELY -- DEFINITIVE IDENTIFICATION. (1) Any person signing a funeral service agreement or cremation authorization form or any other authorization for disposition, whether part of a prearranged funeral plan or at time of death, shall be deemed to warrant the truthfulness of any facts set forth therein, including the identity of the deceased whose remains are sought to be buried or cremated and the signer's authority to order such disposition.

(2) A funeral establishment, cemetery, or crematory establishment shall have the right to rely on such authorization and shall have authority to dispose of human remains upon the receipt of an authorization form signed by the decedent or by the person having the right to control disposition as set forth in section 54-1142, Idaho Code, or upon authorization by the county coroner pursuant to section 31-2802, Idaho Code, as long as such funeral establishment, cemetery, or crematory establishment also complies with the provisions of subsections (3) and (4) of this section. ~~There shall be no liability of a funeral establishment, cemetery or crematory establishment that disposes of human remains pursuant to such authorization, or that releases or disposes of the remains pursuant to such authorization.~~

(3) Prior to making an application for cremation, a funeral establishment, cemetery, or crematory establishment shall verify that a definitive identification of the decedent has been made by an attending physician, physician assistant, advanced practice professional nurse, or the county coroner pursuant to the provisions of section 39-260, Idaho Code.

(4) Prior to performing a cremation, a funeral establishment, cemetery, or crematory establishment shall verify that the decedent to be cremated is the same individual who was definitively identified as provided for in subsection (3) of this section.

(5) For the purposes of this section, "definitive identification" means to verify an individual's identity definitively or with high confidence through a method such as fingerprinting, DNA analysis, government-issued photographic identification, or a visual identification by a legal next of kin to confirm that an individual is accurately identified.

1       (6) There shall be no liability for a funeral establishment, cemetery,  
2 or crematory establishment that disposes of human remains in compliance with  
3 the provisions of this section.

4       SECTION 2. An emergency existing therefor, which emergency is hereby  
5 declared to exist, this act shall be in full force and effect on and after  
6 July 1, 2026.